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Cities should maintain flexible outdoor dining programs

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One of the few silver linings of the coronavirus pandemic was that governments were forced to think outside-of-the-box in order to make things happen.

In the early months of the pandemic, local governments across the country loosened regulations to allow restaurants and bars to serve customers outdoors. They made it easy, out of necessity, for businesses to set up on the curb, on the sidewalk, private parking lots and in the streets.

One city which deserves particular credit for this is Los Angeles. The city's Al Fresco dining program was designed to be straightforward, providing clear rules and guidelines for businesses interested in taking part in the program.

Beyond requirements that restaurants and bars maintain the usual business licenses and permits, the city's Al Fresco dining program required no special fees to apply.

Normal bureaucratic hurdles were bypassed in favor of common-sense requirements that businesses must follow, such as "maintaining outdoor dining area in a clean and orderly manner," "notifying neighboring businesses and obtaining permission from the property owner." Restaurants also are responsible for "providing own tables, chairs, and other furnishings."

In practice, the program helped thousands of businesses across the city during an exceptionally challenging time, which saw vast proportions of restaurants get wiped out.

"The Al Fresco dining program allowed more than 2,500 businesses to skip the expensive, months-long process of applications, approvals and fees," the Los Angeles Times reported in February 2023.

What could go wrong?

Well, naturally, Los Angeles city bureaucrats decided the program couldn't go on indefinitely in its relatively laissez-faire manner. A few months ago, a draft ordinance emerged to replace the Al Fresco dining program with a clunky set of permit requirements.

"Until now restaurants were not required to have an additional conditional use permit to serve alcohol in their new outdoor dining areas. But going forward, restaurants will have to get a permit to serve alcohol in those spaces, a process that could cost tens of thousands of dollars in fees and consulting – and that's before also dealing with permits and fees for already-constructed sidewalk and street side patio spaces," summarized Eater LA.

Restaurant owners across the city have raised concerns about the harmful consequences of the city's proposal. Some restaurants will have to cut back on the number of seats they can provide, remove patio structures, retain the services of consultants to walk them through the bureaucracy and pay tens of thousands of dollars for permits.

"This is a huge money grab of the city and I feel the city is penalizing restaurants or something they forced us into," Christy Vega, the owner of Casa Vega, told the local ABC affiliate. "It doesn't make a lot of sense and I think it's complete government overreach to tell me that I can't provide this size of patio."

The prospect of City Hall ruining a perfectly good thing by imposing costly and time-consuming hurdles has prompted local lawmakers in state government to propose legislation to preserve pandemic-era regulatory relief for restaurants.

Assemblyman Jesse Gabriel, D-Los Angeles, proposed Assembly Bill 1217 directly in response to the pending Los Angeles ordinance. “If passed, AB 1217 would preempt this ordinance and help local restaurants avoid confusing and costly red tape to keep outdoor dining operations open,” a statement from Gabriel’s office reads.

State legislation in theory shouldn’t be necessary. If City Hall officials simply knew when and how to exercise their powers, they wouldn’t be taking a completely effective program predicated on timely approval and simple rules and trying to replace it with a slow, expensive process.

Of course, this phenomenon isn’t unique to Los Angeles.

What are other cities doing?

Seattle has also made permanent its own outdoor dining program. The city’s program provided free permits until earlier this year to a range of commercial businesses, from cafes to street fairs. Prior to the pandemic, the cost of such permits reportedly ranged from $300 to $4,000 depending on the size of the business.

An outdoor dining permit has now been approved by the Seattle City Council. While Seattle officials insist the program is less time-intensive and simpler than before the pandemic, it does come at a cost. An issuance fee from the Seattle Department of Transportation will cost $1,220 and it will cost $588 per year to renew.

In response to the new fees, one restaurateur told the local CBS affiliate that while the ability to continue offering outdoor seating is a positive, “the cost of everything has been going up but you can only raise your prices so much. Nobody’s gonna pay for a 40-dollar hamburger at this point.”

Some cities in Oregon are likewise making outdoor dining permanent, but now with fees and a greater emphasis on enforcement.

Oregon Public Radio recently highlighted the story of Dots Cafe owner Eli Johnson who benefited from Portland’s loosened outdoor dining rules. “Johnson was amazed,” OPB reported. “Permitting for outdoor seating would normally have taken a year or more, he said, let alone seating that took over part of the street was now a breeze.”

Under new rules, businesses have to pay for the use of parking spaces, $144 per month in the case of Johnson. But both Johnson and the Oregon Restaurant and Lodging Association believe the fees are fair and offset by the benefits of ongoing, easier access to outdoor dining.

Meanwhile, in Colorado, cities have taken a number of different approaches.

Boulder, for instance, has launched a five-year pilot program allowing “restaurants, brewpubs, taverns, wineries and distilleries that have available space within 150 feet of their entrances or directly in front of the building the business is located within to continue offering expanded outdoor dining by applying for the program and paying for a permit and parklet infrastructure from the city.”

Denver has established a permanent outdoor dining program, with some updates and revisions. The new system requires, among other things, a renewed focus on ADA (Americans with Disabilities Act) accessibility. But, according to city officials, the new permitting progress will be simpler for businesses interested in applying.

“One of the things that we heard pretty clearly is that applying for a permit can be much simpler. We have set up a program administrator who will be the primary point of contact for applicants,” Laura Swartz, spokesperson for the Community Planning and Development Department, told Denverite.

Good things happen when City Hall gets out of the way

While outdoor dining may or may not remain as popular as it was during the peak of the pandemic, what’s

important is that businesses and consumers have options and opportunities that aren't contingent on city bureaucracies.

Fees should be reasonable and not merely aimed at gouging restaurants for more city revenues. Permitting processes should be simple and customer-oriented, not a labyrinth. And cities should view expanded business opportunities like outdoor dining as a means of invigorating their cities and building a sense of community.

There were many things that went wrong in the pandemic era, but easy and free outdoor dining programs were obviously not among them.

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